

M/s Rajendra Engineering Udyog Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 19 November 2018 · Writ-C No. 66339 of 2009 · **Writ dismissed for want of prosecution; interim vacated.**

HEADNOTE

Writ challenging a demand notice for additional security under paragraph 4.20 of the U.P. Electricity Supply Code, 2005, dismissed for want of prosecution; the 2009 interim restraint on further demand stands vacated.

FACTUAL SUMMARY

The petitioner, an industrial consumer, challenged a 1 October 2009 demand notice of Paschimanchal Vidyut Vitran Nigam Ltd. seeking additional security under paragraph 4.20 of the U.P. Electricity Supply Code, 2005. On 7 December 2009 the Court listed the writ with similar 2009 matters and, following an interim order in Writ Petition No. 30582 of 2009, restrained further demand of additional security. On 19 November 2018, none appearing for the petitioner even on the revised list, the writ was dismissed for want of prosecution and the interim order vacated.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

dismissal for want of prosecution

HOLDING

The writ challenging the additional-security demand was dismissed for want of prosecution and the 2009 interim restraint vacated, without any determination of paragraph 4.20. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 1.10.2009 ADDITIONAL-SECURITY DEMAND UNDER PARAGRAPH 4.20 OF THE SUPPLY CODE, 2005

Listed with similar 2009 matters and later dismissed for want of prosecution; the demand was not examined on merits. ¶ 1-2